



THE SAFETY AND WELFARE OF WITNESSES

THE FEDERAL WITNESS PROTECTION PROGRAM (1970)

IN CONTEXT

FOCUS

Criminal law

BEFORE

1871 US Congress passes the Ku Klux Klan Act to protect witnesses against the white supremacist group.

AFTER

1984 The Comprehensive Crime Control Act strengthens witness protection.

1986–1987 Sicilian mobster turned informant Tommaso Buscetta provides crucial evidence at the Maxi Trial of 475 *mafiosi* in Palermo, Sicily. He dies in witness protection in the US in 2000.

1994 Australia passes the Witness Protection Act.

1996 Canada introduces witness protection.

2013 Britain introduces the Protected Persons Service.

Often known simply as the Witness Security Program, or WITSEC, the Federal Witness Protection Program began under the terms of the Organized Crime Control Act of 1970. It is administered jointly by the US Department of Justice and the US Marshals Service and was the brainchild of Gerald Shur of the Department of Justice's Organized Crime and Racketeering Section.

The program was sparked by the case of Joe Valachi, who in 1963, already serving life for murder, was the first senior member of the Mafia to detail its inner workings. In return, even in prison, he was accorded official protection. Valachi's case highlights an important fact: the program is intended to protect criminals who become informers rather than aiding the innocent victims of crime.

Those who are protected are cut off not just from their past but from everything except immediate family. Granted new identities, spirited away from everywhere familiar, their lives are turned

upside down. In effect, the price of their safety is a double life—an elaborate lie rigorously enforced. To date, about 18,000 people have been given protection. The US Marshals boast that not a single person who has adhered to its demanding dictates has been the victim of a revenge killing. With a conviction rate of those testifying against former associates of 89 percent, it has proved a major weapon in the fight against organized crime. ■



Joe Valachi, the first to break the Mafia code of *omertà* (silence). Shur claimed that Valachi “could discuss spaghetti sauce and the killing of a close friend with the same lack of emotion.”

See also: INTERPOL 220–221 ■ The Universal Declaration of Human Rights 222–229 ■ DNA testing 272–273